

# Constitutional Guidelines for a Democratic South Africa

## The State

1) South Africa will be an independent country. The country will make its own decisions. South Africa will be a unitary country. All of South Africa will be one country. South Africa will be a democratic country. The people - all the people - will choose who governs them. And if they govern badly, the people will be able to vote for a new government. South Africa will be a *non-racial country*. All people, black and white, will have the same rights.

2) South Africa will belong to all its people. There will be one parliament which will make the laws of the country. There will be one government, one system of courts, and one administration for the people. To bring democracy to people, there will also be regional administrations.

3) The duty of chiefs and traditional rulers will be to serve the people as a whole - and to rule in a *democratic way*.

4) The courts, the army and the police will serve all the people. Their job will be to protect the people and the constitution.

## One Person, One Vote

5) Every man and woman will have a vote. There will be one person/one vote.

6) Everyone who can vote can also stand for election.

## One Country, One People

7) All South Africans will be made to feel that they belong to the country. The state will protect the different languages and cultures of all South Africans - but all South Africans will be citizens of one country and loyal to that country.

## A Bill Of Rights

8) There will be a bill of rights based on the Freedom Charter. The Bill of Rights will protect the rights of all the people - of blacks and of whites, of men and women, and of people of all religions.

9) The government, together with other organisations, will have a duty to stamp out racism.

10) The government and other organisations must find quick ways to get rid of the inequalities of apartheid - for example, differences in wages, in housing and in education.

11) Any organisation that supports racism, fascism or nazism will be banned. So will any organisation that makes any group of people hate another group.

12) Everybody - except racists, fascists and nazis - will have the right to have meetings, to think what they like, and to follow any religion. There will be freedom of the press. The state will protect the right to work, the right to education and the right to social security (for example, unemployment benefits, pensions, health care).

13) Any party can stand for election. But not parties that are racist, fascist or Nazi, or parties that make one group of people hate another group.

## Economy

14) The state will make sure that the country's economy works for the good of the people.

15) The state will decide the country's economic system. The state will be able to decide on the rights and duties of those who own industries, factories, mines, and businesses.

16) Business must respect the Freedom Charter, and work with the state to make a good society for all the people.

17) The economy will be mixed. There will be state ownership. There will also be co-operatives and family businesses.

18) The state will give help to co-operatives, village industries and family businesses.

19) The state will help all people, especially black people, to get training in management skills, and in technical and scientific skills.

20) All people will have the right to keep their belongings. This right will be protected by the state.

## Land

21) People of any colour will be able to own and use land in any part of the country. The state will give special help to people who have had their land taken away from them, for example by forced removals.

## A Workers' Charter

22) There will be a special charter for workers. The rights of trade unions will be protected, especially the right to strike and collective bargaining.

## Equal Rights For Women

23) Women will have the same rights as men at home, at work and in the community. The state will give women special help to make up for the inequalities of the past.

## The Family

24) The rights of the family, of parents and of the children will be protected.

## South Africa and The Rest of The World

25) South Africa will not be an ally of the United States or the Soviet Union. It will be a non-aligned country. It will support the aims of the Organisation for African Unity (OAU) and of the United Nations (UN). South Africa will help oppressed peoples in other parts of the world. South Africa will help to make the world a place of peace.

We have taken this from Learn and Teach, number 5, 1988. Learn and Teach changed the wording and explained things here and there. They did this to make the Guidelines simpler and easier to read. They have tried their best to keep to the true meaning and spirit of the Guidelines.



Photo by: Afrapix

# Be Part of Making Your Dream Come True!

## Constitutional Guidelines for a Free, Democratic, Non-Racist, Non-Sexist South Africa

### A Document to Discuss

The African National Congress (ANC) has drawn up a document called the Constitutional Guidelines. This document sets out an idea of the ANC's plan for a future South Africa. The ANC wants people and organisations in South Africa to discuss the Constitutional Guidelines.

In this way, people in South Africa can be part of shaping our future.

For hundreds of years the majority of people in South Africa have struggled against a government that has been only interested in the needs of a small minority - the white South Africans. Black people and workers have had to





fight against the oppressive laws made by this white government. As part of this fight, the people of South Africa, with their organisations, were involved in drawing up the Freedom Charter in 1955. At this time, the ANC was a legal organisation, organising in South Africa. The ANC's Constitutional Guidelines were drawn up in 1987 by the ANC outside of South Africa. They have been drawn up because we seem to be much closer to a free South Africa. The Guidelines spell out more clearly how the demands of the Freedom Charter can become a real part of the future South Africa.

### Shaping the New Society

Many organisations have started to discuss the Guidelines. It is important that they are discussed all over South Africa. Women and men need to say what it is we want to see in a new South Africa. It is now that we have the chance to play a part, not only in struggling against the old system, but also in shaping the new society. As Nomvula, a woman active in the unions, said: "It is important to discuss these Guidelines. We can be part of adding to or changing them. We can say what we want in a post-apartheid South Africa. When freedom comes, we must know what we want to do with it. It will also prove to those who say we don't know what we want, that we do know what we want!"

The Guidelines are based on democracy, an end to racism and an end to sexism. The document talks about creating a society where people will be able to lead normal, decent lives, as free citizens in a free country. It talks about having a government where the people will have a say at all levels. It talks about having a mixed  
SPEAK

economy. It deals with issues of land, of workers, women and the family.

### Women's Rights

The section of the Guidelines that deals with women says that women shall have the same rights as men at home, at work and in the community. And that the state will give women special help to make up for the inequalities of the past. SPEAK asked some women what they understood by this. And what they wanted to see for women in a future free South Africa.

"What will it mean to have have the same rights as men at home, at work and in the community?" we asked.

Shinaez, a women activist in women's organisation talked about what this meant for her. She said: "This section shows that the ANC wants a situation where women will no longer be exploited and oppressed. And that this goes for the outside world and in the home. So they are talking of democracy and equal rights in the home and in the workplace and everywhere. Women will have to stand up for their rights. And men will have to learn that they can't have everything their own way. It will mean that we can look forward to a new South Africa, where we will be able to fight things like rape, and wife-beating. It will mean that as women we will have a place in the new society that we can be proud of. That the struggles alongside our men against apartheid and capitalism, is also going to mean a real change for us as women."

### Sharing at Home

Nomvula said: "At home, marriage mustn't be like a burden, it must be like a partnership. At home, the duty of bringing up children mustn't be seen as the duty of the women. Men must take part in everything from washing the napkins to feeding the babies. I must be able to decide what I want with my future if I am married. Most of the time the husband tells you that you can't go to this meeting or go there, forgetting that you are part of the struggle. This needs to change."

Nomvula went on to talk about her idea of what equality means at work and in the community. She said: "This means the opening of jobs for everybody. We need new laws that will make



everybody acceptable irrespective of sex, creed, or race. Tax must be done equally. Married women must not be discriminated against. There must be the same salary for the same job. There mustn't be separate jobs for men and women. Women often end up doing the dirty jobs."

### **An End to Sexual Harassment**

"Sexual harassment must come to an end. Men must stop seeing women as sex objects. They must stop thinking of sex each and every time they see women. They must discuss with us things that are relevant. You don't have to sell a car by having a half-naked woman on top of the car."

"There must be equality at work and everywhere in the society. We've got organisations like community organisations - even there they have got that old belief that women can't be in the forefront and taken seriously. This will change with a new government."

### **Educating People for a New Society**

Malindi, an activist in women's organisation and trade unions for many, many years said: "What I know is that there is discrimination against women at work and at home. As a family discussing something, we have no say because you are a woman. It is very, very important that a future government changes things for women. All along, women have not been recognised. This is changing slowly. At work, you find that a post is for a man. I believe that all jobs should be for everybody so long as you are qualified. It has been planted in our minds that the best person to have privileges is a man. We need to root out that idea. The new government must do this by educating people. Each and everything to do with violence against women must be discussed by the people, so that we can get rid of it. Men harass their wives. The children get scared. The husband is seen as the lion of the house. They must be tamed. There must be education. This government has ruled our minds so we can't use our own minds."

Nomsa, is active in the church. She said:

"Women shall be considered and recognised on merit. There must be no tokenism. We must be considered by our skills, ability and creativity. Not by sex and gender. The Constitutional

Guidelines implies doing away with sexism and racism."

She went on to talk about what it means to have the same rights as men at home. She said: "It means a human rights declaration in the home front. This means bringing equality into the home. Like with lobola, and the marital contract. We have to decide on the good things from our culture. But the things that are outdated and are oppressive to woman must be addressed. We are going to have a radical transformation. The traditional value system favours men. So we need to look at that. What oppresses women is attractive to men. And some women support their own oppression."

"What does it mean by saying the state will give women special help to make up for the inequalities of the past?" we asked.

### **Women Must Be Trained in Leadership**

Malindi feels that women must be trained in leadership. She said: "Women must be trained so that we can take up positions in the new government. Men are the very ones who oppress us."

Shinaez said: "It must mean that the government will see to it that things like childcare, maternity rights and that will be provided. That women will have equal rights to education - so that the damage done by the present system which keeps women down will have to be put right through things like special education programmes."

### **A Big Need to Discuss the Guidelines**

All the people we talked to felt that there is a big need to discuss and debate the Constitutional Guidelines as far and wide as possible. Because it is our future South Africa that we are planning. Many organisations are discussing these Guidelines. Everybody needs to be able to make informed choices and decisions for the new South Africa. For it is in this way that true democracy must work. All the people of South Africa should be involved in this process of making a contribution to our future.

Write to us with your ideas of a new South Africa. Share with our readers what you think needs to happen and be done so that all women, men, youth and children shall have a decent life in a free South Africa. Let us continue the discussion and debate so that we lead ourselves to a society that is truly democratic, non-sexist and non-racist.●





SOSCO (Soweto Students Congress) women at Johannesburg march

Anna Zieminski, Afrapix

# Youth Women Organise

*This article was taken from Youth Focus Vol. 1. No. 1 July 1989, published by the National Youth Working Committee.*

Youth organisations in South Africa are talking seriously about organising women. The South African Youth Congress (SAYCO) has a national organiser for women. Her name is Dipuo. Dipuo's job is to make sure that women are involved in SAYCO and that SAYCO takes up issues affecting women as part of their programme.

## Young Women Organise!

Dipuo believes the task of organising women is an important task. She believes this must be given an important place in the work of youth organisation in particular, and the mass

democratic movement in general. She believes that even with the state of emergency and the attacks from the government on organisations the work of organising women must be done.

Dipuo said in an interview in *YOUTH FOCUS*: "Presently the women's organisation in SAYCO is very weak, because we don't have a solid womens body at national level. But an agreement has been reached that a forum or committee must be created where women can come together and discuss issues that affect them."

For instance, every woman is a potential target of rape and other forms of abuse in her community and even beyond. There are also health issues to rally women around such as contraceptives, and issues related to family planning.

Much has been said and published about why are women suffering various kinds of oppression and exploitation. But I would like to point out here that it goes a long way to change the attitudes of society towards women.

We as women object to the fact that we are the only ones who among other things have to take contraceptives, while men need not even worry about that while the task of making kids is undertaken by both parties. Why hasn't medicine invented a contraceptive for men? This inconsiderate attitude of the society towards women is now a norm. People don't see anything wrong with that, they think there is absolutely nothing wrong with it, that it's normal."

### **Struggle To Create New People**

"The liberation of this country will be meaningless as long as it does not include completely changing society, or the creation of a new person.

SAYCO does not separate the struggle of women from the broad national democratic struggle."

On the question of protection of women against rape Dipuo believes that organised women in African communities are seldom victims of rape because tsotsis are often scared of anything associated to or called a comrade.

Dipuo says:

"To my knowledge no rape of a comrade has ever been reported — I don't say comrades haven't been raped, I'm merely emphasising that this seldom happens".

On the question of why women get left behind, or why there are so few women in organisation Dipuo says:

"At the age of eight a boy is allowed to go out and play while a girl is taught household chores and told how vulnerable she is in the outside world. She must always stay indoors. And still while she is indoors she doesn't question her

elders when taught the do's and don'ts.

She will grow up with this attitude of not questioning things until she goes out. The boy on the other hand meets challenges outside and develops his own point of view which he learns to defend, by debating, and fighting if possible. So when they come into organisations it usually takes a long time before they develop self assertiveness and confidence in themselves.

Equal exposure of the outside world for a boy and a girl will in the long run make nonsense of the belief that boys were born cleverer than girls."

### **Changing Attitudes**

How can these attitudes be changed?

Dipuo believes that these attitudes will change if women are mobilised and actively involved in



**Boys sharing housework will free girls**

Steve Hilton Barber, Afrapix

**SPEAK**



organisation. SAYCO, she says, is deeply concerned about the need for organising women. This is why SAYCO agreed to form a womens subcommittee within SAYCO at their 1988 Congress and appointed Dipuo as national organiser to realise this task.

SAYCO is working towards a women's conference. SAYCO says that every effort must be made to organise women at local, regional and national levels. SAYCO women were urged to join FEDSAW (Federation of South African Women) or any other regionally based womens organisation in addition to SAYCO.

A few months after the meeting which decided these things SAYCO leadership were detained. Dipuo escaped detention. She said "I had gone to prepare food for my baby and change her nappy when the police arrived. They arrested Rapu Molekane and beat him in an attempt to force him to reveal my whereabouts. He did not

reveal this to them. He only told them that I took my child Tumi to the hospital as she fell ill during the meeting.

These detentions and the state attack on youth organisation meant that all energy was put into consolidating remaining youth structures."

### **Stop Living in Shadows**

Dipuo's message to women is clear. She says: "As women we do not have to wait for events to give us direction, but we have to direct and actively involve ourselves in the events. We must avoid living in the shadows of our boyfriends or husbands. We must be seen as individuals within our own personalities and strive for recognition as such.

Standing in the shadows of boyfriends or husbands means we will fall if those shadows are removed."



Young women at a funeral in Tembisa

Gill De Vlieg, Afrapix